



**Special Education
School District Data Profile for
Harrison Central School District for 2007-08**



Vocational and Educational Services for Individuals with Disabilities

Special Education School District Data Profile for 2007-08

The Special Education School District Data Profile is prepared in accordance with the requirement of the Individuals with Disabilities Education Act (IDEA). Each State must have a State Performance Plan (SPP) to evaluate the State's efforts to meet the requirements and purposes of the implementation of IDEA. The SPP is a six-year plan which describes New York State's performance on 20 indicators. States must report annually to the public on the performance of the State in an Annual Performance Report (APR) and each school district against the State's targets. New York State's SPP and the APR that describe these indicators in detail are available at

<http://www.vesid.nysed.gov/specialed/spp/home.html>.

The following report reflects only quantifiable data collected by the State. Since performance of a school district in any indicator may be the result of unique circumstances within a district, readers are encouraged to consider information provided by the district's administration in interpreting these data.

Enrollment and Classification Rate

	2007-08
• Enrollment of school-age students with disabilities on December 3	455
• District enrollment (public and nonpublic school-age students - with and without disabilities) on the first Wednesday in October	3,985
• Special education classification rate	11.4%
• Enrollment of preschool students with disabilities on December 1	69

Indicator 1: Graduation Rate of Students with Disabilities

	2007-08 (2004 Total Cohort four years later as of June 30, 2008)	2007-08 (2003 Total Cohort five years later as of June 30, 2008)
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2004-05	34	
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2003-04		44
• Graduation rate	76.5%	81.8%
• State target for 2007-08	38% or higher	No State Target
• Meets State target?	Yes	Not Applicable



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**Indicator 2: Drop-Out Rate of Students with Disabilities**

	2007-08 (2004 Total Cohort as of June 30, 2008)
• Number of students with disabilities who first entered 9th grade anywhere (or if ungraded, became 17 years old) in 2004-05 school year	34
• Drop-out rate after four years	0%
• State target for 2007-08	19% or lower
• Meets State target?	Yes

Indicator 3: State Assessments

Participation in State Assessments	2007-08			
	Grades 3-8 English Language Arts (ELA)	Grades 3-8 Math	High School English Language Arts (ELA)	High School Math
• Enrollment of students with disabilities for participation rate	221	221	Less Than 40*	Less Than 40*
• Participation rate	97%	97%	*	*
• State target for 2007-08	95%	95%	95%	95%
• Meets State target?	Yes	Yes	*	*

* Participation rate is provided only if at least 40 students with disabilities are reported in the first row.

Performance on State Assessments and Adequate Yearly Progress (AYP)	2007-08			
	Grades 3-8 English Language Arts (ELA)	Grades 3-8 Math	High School English Language Arts (ELA)	High School Math
• Enrollment of students with disabilities for performance accountability	214	213	33	33
• Score on performance index	144	158	170	155
• State target for 2007-08	101	110	124	134
• Meets State target?	Yes	Yes	Yes	Yes
• Made AYP?	Yes	Yes	Yes	Yes



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Indicator 4: Suspensions/Expulsions

Long-term Suspension Rate	2007-08
• Number of students with disabilities suspended out-of-school for more than 10 days	3
• Number of students with disabilities enrolled on December 3	455
• Percent of students with disabilities suspended out-of-school for more than 10 days	0.7%
• State target for 2007-08	2.7% or lower
• Meets State target?	Yes

Indicator 5: School-age Least Restrictive Environment (LRE)

	2007-2008				
• Number of students with disabilities ages 6-21 on December 3	422				
	Percent of students with disabilities in general education program for:			In separate schools / facilities	In Other Settings
	80% or more of the day	40 to 79% of the day	Less than 40% of the day		
• Percent of students ages 6-21 in each setting	68%	14.5%	11.1%	4%	2.4%
• State target for 2007-08	More than 53.1%	No State Target	Less than 24.6%	Less than 6.8%	No State Target
• Meets State target?	Yes	Not Applicable	Yes	Yes	Not Applicable

Indicator 6: Preschool Least Restrictive Environment (LRE)

The data for this indicator are not presented because the LRE reporting categories for preschool children with disabilities are under review by the United States Department of Education.

**Special Education
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If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedul.html> for the school year in which this school district will report data for this indicator.

	2007-08		
	Positive Social - Emotional Skills	Acquisition and Use of Knowledge & Skills	Use of Appropriate Behaviors to Meet their Needs
• Number of preschool students with disabilities evaluated for progress between entry into preschool special education and exit from preschool special education			
• Percent of preschool students with disabilities who demonstrate improvement			
• State target for 2007-08	To Be Established	To Be Established	To Be Established
• Meets State target?			

Indicator 8: Parental Involvement

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedul.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of completed parent surveys returned	
• Percent of parents who reported that schools facilitated parent involvement to improve services and results for students with disabilities	
• State target for 2007-08	87.5% or higher
• Meets State target?	

Indicator 9: Disproportionality - Identification for Special Education

	2007-08
• Did the school district have disproportionate representation of racial and ethnic groups in special education and related services that was the result of inappropriate policies, practices and procedures?	No
• State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
• Meets State target?	Yes
• Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable



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Indicator 10A: Disproportionality in Specific Disability Categories

	2007-08
Did the school district have disproportionate representation of racial and ethnic groups in specific disability categories that was the result of inappropriate policies, practices and procedures?	No
State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
Meets State target?	Yes
Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable

Indicator 10B: Disproportionality in Special Education Placements

	2007-08
Did the school district have disproportionate representation of racial and ethnic groups in particular settings that was the result of inappropriate policies, practices and procedures?	No
State target for 2007-08	No school districts will have disproportionality that is the result of inappropriate policies, practices and procedures.
Meets State target?	Yes
Date the district reported correction of noncompliance for this indicator if it did not meet the State target	Not Applicable

Indicator 11: Timely Evaluations (Child Find)

If data are not provided for this indicator, see the schedule posted at http://www.vesid.nysed.gov/sedcar/sppschedul.html for the school year in which this school district will report data for this indicator.		
	2007-08	
	Preschool	School-age
Number of students for whom parental consent to evaluate was received (July 1, 2007 to June 30, 2008)	59	88
Number of students whose evaluations were completed within the State established timeline	45	72
Number of children whose evaluations were not completed within State established time lines, but for reasons that are considered to be in compliance with State requirements	11	8
Compliance Rate [Line 2 divided by (Line 1 minus Line 3)*100]	93.8%	90%
State target for 2007-08	100%	100%
Meets State target?	No	No

**Special Education
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If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of children who were served in Part C and referred to Part B for eligibility determination	
• Number of those referred determined to be NOT eligible and whose eligibilities were determined prior to their third birthday	
• Number of those found eligible who had an IEP developed and implemented by their third birthday	
• Number of children for whom delays in determination of eligibility or delays in implementing the IEP were caused by reasons that are in "in compliance" with State requirements	
• Compliance Rate [Line 3 divided by (Line 1 minus Line 2 minus Line 4) *100]	
• State target for 2007-08	100%
• Meets State target?	

Indicator 13: Secondary Transition

If data are not provided for this indicator, see the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html> for the school year in which this school district will report data for this indicator.

	2007-08
• Number of IEPs reviewed for students ages 15 and above	
• Percent of IEPs of students ages 15 and above that include coordinated, measurable, annual IEP goals and transition services that will reasonably enable the student to meet the post-secondary goals	
• State target for 2007-08	100%
• Meets State target?	
• Date the district reported correction of noncompliance for this indicator	

**Special Education
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Data for this indicator will be posted beginning June 2008, in accordance with the schedule posted at <http://www.vesid.nysed.gov/sedcar/sppschedule.html>.

2007-08

- Number of students interviewed to assess post-school outcomes one year after leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school AND have been competitively employed within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and have been competitively employed within one year of leaving high school
- Percent of students who had IEPs, are no longer in secondary school, and who have been enrolled in some type of post-secondary school, have been competitively employed, or both, within one year of leaving high school (sum of the three percentages above)
- State target for 2007-08
- Meets State target?

92%

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WISCONSIN

CHARLES G. ANDERSON,

Petitioner,

v.

ORDER

12-cv-578-bbc

DEBORAH McCULLOCH, Director,
Sand Ridge Secure Treatment Center,

Respondent.¹

Petitioner Charles G. Anderson seeks a writ of habeas corpus under 28 U.S.C. § 2254 to challenge his continued confinement at the Sand Ridge Secure Treatment Center in Mauston, Wisconsin. Anderson proceeds pro se and he has paid the five dollar filing fee. This case is pending before the court for preliminary review under Rule 4 of the Rules Governing Section 2254 Cases.

Preliminary review of the petition shows that Anderson is in custody pursuant to a civil commitment order entered under the state sexually violent persons law, Wis. Stat. ch. 980. Anderson provides scant detail about his commitment proceedings or his efforts to obtain relief in state court. He appears to challenge a judgment from the Circuit Court for Portage County, which denied his petition for discharge under Wis. Stat. § 980.09. Public records confirm that this judgment was affirmed on direct appeal, *State v. Anderson*, 2012 WI App 52, 340 Wis.2d 742, 813 N.W.2d 248 (Wis. App. March 22, 2012) (unpublished), and the Wisconsin Supreme Court has denied further review.

¹ The petition lists Secretary Dennis Smith of the Wisconsin Department of Health and Human Services as the respondent. The court substitutes the official having custody, Sand Ridge Director Deborah McCulloch, as the proper respondent under Rule 2(a) of the Rules Governing Section 2254 Cases.

Liberally construed, Anderson contends that his continued confinement is unconstitutional because the state failed to prove that he remains a sexually violent person as defined by Wis. Stat. 980.01(7). Anderson has not alleged any facts in support of this claim. Nevertheless, it appears that Anderson has exhausted his state court remedies with respect to this issue and that he has filed his petition within the one-year limitations period on federal review. Therefore, at this early stage of the case, Anderson may proceed with this claim.

ORDER

IT IS ORDERED THAT:

1. **Service of petition.** Pursuant to an informal service agreement between the Attorney General and the court, the Attorney General is being notified to seek service on the respondent, Deborah McCulloch, in her official capacity as director of the Sand Ridge Secure Treatment Center.

2. **Answer deadline.** Within 30 days of the date of service of this order, respondent must file an answer to the petition, in compliance with Rule 5 of the Rules Governing Section 2254 Cases, showing cause, if any, why this writ should not issue.

3. **Motions to dismiss.** If the respondent contends that the petition is subject to dismissal on its face - - on grounds such as the statute of limitations, an unauthorized successive petition, lack of exhaustion or procedural default - - then respondent is authorized to file within 30 days of this order, a motion to dismiss, a supporting brief and any documents relevant to the motion. Petitioner shall have 20 days following service of any dismissal motion within which

to file and serve his responsive brief and any supporting documents. The respondent shall have 20 days following service of the response within which to file a reply.

4. **Denial of motion to dismiss.** If the court denies such a motion to dismiss in whole or in part, then it will set deadlines for the respondent to file an answer and for the parties to brief the merits.

5. **Briefing on the merits.** If respondent does not file a motion to dismiss, then the parties shall adhere to the following briefing schedule regarding the merits of petitioner's claims:

- (a) Petitioner shall file a brief in support of his petition within 30 days after respondent files his answer. With respect to any claim adjudicated on the merits in state court, petitioner must show either that (1) the state court contravened a controlling opinion of the United States Supreme Court; (2) the state court applied a controlling opinion of the United States Supreme Court in an unreasonable manner; or (3) the state court's decision rested upon an unreasonable determination of the facts. 28 U.S.C. § 2254(d).
- (b) Respondent shall file a brief in opposition within 30 days after petitioner files his initial brief.
- (c) Petitioner shall have 20 days after respondent files his brief in which to file a reply brief.

Entered this 22nd day of August, 2012.

BY THE COURT:

/s/

STEPHEN L. CROCKER
Magistrate Judge